

25PSCV04388 25PSCV04388

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-06-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CG%2C06%2F25%2F2026

Source SHA-256: a7466592ccdd64939d22328e6482b488a71c437047947609d74eb8a070fefef4

Case Number: 25PSCV04388 Hearing Date: June 25, 2026 Dept: G

Plaintiff American Express National Bank's Applications
for Default Judgment

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff

American Express National Bank's Application for Default Judgment is GRANTED.

BACKGROUND

This

is an action for breach of contract. On

December 8, 2025, plaintiff American Express National Bank (American Express)

filed the Complaint, alleging a sole cause of action for breach of contract.

On

May 1, 2026, American Express filed the first request for entry of default and

application for default judgment. The

court entered default against defendant Christian J Simpson (Simpson) and

rejected default against defendant Retro Recipes LLC (Retro Recipes). On May 29, 2026, American Express filed the

second request for entry of default and application for default judgment. The court entered default against Retro

Recipes and rejected default against Simpson (because it previously entered

default against him).

The

applications are set for hearing on June 25, 2026.

LEGAL

STANDARD

Code

of Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. A party seeking judgment on the default by the court must file a Request for Court Judgment, and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800.)

ANALYSIS

As a

preliminary matter, the court notes that there are two applications for default judgment, one filed May 1, 2026 and another filed on May 29, 2026. (See 5/1/2026 CIV-100, p. 1, requesting entry of default and applying for court judgment; see also 5/29/2026 CIV-100, p. 1, requesting entry of default and applying for court judgment.) Therefore, to avoid confusion, the court DENIES the May 1, 2026 application for default judgment WITHOUT PREJUDICE and considers only the May 29, 2026 application.

American

Express seeks default judgment against Simpson and Retro Recipes (collectively, Defendants) in the total amount of \$79,868.78, including \$79,113.78 demanded in the Complaint and \$755.00 in costs. (See 5/29/2026 CIV-100, ¶ 2.) American

Express submitted sufficient evidence to prove its damages. (See McCarter Decl., ¶¶ 1–14; see also McCarter Decl., Exhs. A–B.)

Therefore, the court GRANTS the May 29, 2026 application for default judgment.

CONCLUSION

For these reasons, the May 1, 2026 application for default judgment is DENIED WITHOUT PREJUDICE, and the May 29, 2026 application for default judgment is GRANTED.